

Court No. - 1

Case :- WRIT - C No. - 27978 of 2019

Petitioner :- Baluwa @ Ballu

Respondent :- U.P. Power Corporation Ltd. And 2 Others

Counsel for Petitioner :- Ashok Gupta

Counsel for Respondent :- Krishna Agarawal

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri Ashok Gupta, learned counsel for the petitioner and Sri Suresh Kumar Mishra holding brief of Sri Krishna Agrawal, learned counsel for respondent Nos.1, 2 and 3.

Learned counsel for the petitioner has come up before this Court disputing the bill which is in question.

Sri Suresh Kumar Mishra holding brief of Sri Krishna Agrawal, learned counsel appearing for the Electricity Department has raised preliminary objection that the petitioner has alternative remedy to file representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and against the order passed thereunder, the petitioner has remedy to approach UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007.

In view of the above, we disposed of the writ petition with liberty to the petitioner that in the event he applies for under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed bill within ten days from today along with certified copy of this order, the same shall be considered in accordance with law and shall be disposed of within a further period of six weeks.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 26.8.2019

Shiraz